



United States
Attorney's Office
Western District of Texas



U.S. Attorney's Office Recovers More Than \$55 Million in Civil Settlements and Judgments in Calendar Year 2024

Tuesday, January 28, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Texas

SAN ANTONIO – U.S. Attorney Jaime Esparza announced today that the Western District of Texas recovered \$55,969,678.60 in settlements and judgments in over 25 affirmative civil enforcement cases between January 1, 2024, and December 31, 2024. This figure includes recoveries in both local matters and cases handled jointly with other U.S. Attorney's Offices and the Department of Justice's Civil Division.

"I am proud of my office's work this year to achieve several significant civil recoveries for American taxpayers and the people of the Western District of Texas," said U.S. Attorney Esparza. "We will continue to work with our agency and law enforcement partners to vigorously pursue civil remedies on behalf of the United States when appropriate."

The office's largest civil recoveries were obtained in False Claims Act (FCA) matters. The most significant FCA recoveries include:

- a \$21.75 million settlement with Medisca, Inc. to resolve allegations concerning false and inflated Average Wholesale Prices for ingredients used in compound prescriptions;
- a \$15.875 million settlement with Booz Allen Hamilton to resolve allegations of false claims related to computer military training simulators and systems;
- a \$4.2 million settlement with Elara Caring and its subsidiaries to resolve allegations of false claims for hospice services provided to patients who were not terminally ill;
- a \$2.3 million judgment against Ma Acupuncture Center and Dr. Dongxin Ma to resolve allegations of inflated acupuncture bills submitted to the Department of Veterans Affairs;
- a \$2 million settlement with Five Point Enterprises LLC to resolve allegations of false claims for educational assistance benefits under the Post-9/11 GI Bill; and

- a \$1.3 million settlement with Oncology San Antonio and Dr. Jayasree Rao to resolve allegations of unlawful kickbacks and medically unnecessary tests and treatments.

The U.S. Attorney's Office obtained several smaller—but nevertheless significant—FCA recoveries in COVID-fraud cases, including a \$680,000 settlement with Lafayette RE Management LLC and Thibault Adrien, and a \$425,710 settlement with Freedom Solar LLC. In both cases, the government alleged the settling parties made false certifications in applying for and/or obtaining forgiveness of Paycheck Protection Program loans.

Another area of emphasis for the Western District of Texas is the recovery of civil penalties under the Controlled Substances Act (CSA), which imposes strict regulatory requirements on doctors, pharmacists, and other individuals and entities that handle dangerous drugs and precursor chemicals. Significant CSA recoveries in 2024 include:

- a \$600,000 settlement with Dr. Alfonso Luevano (of which \$465,884.22 was attributed to CSA civil penalties and \$134,115.78 was attributed to FCA damages) to resolve allegations related to unlawful prescriptions for Schedule II controlled substances;
- a \$300,000 settlement with Shrieve Chemical Company LLC to resolve allegations the company violated recordkeeping requirements relating to the importation and distribution of listed chemicals, manufactured a listed chemical without registering, and made a drop shipment to a customer without first importing the chemical to its registered location; and
- a \$210,000 settlement with Sachnikumar Patel, RPh., Medical Arts Pharmacy, and Express Pharmacy to resolve allegations they unlawfully dispensed "office use" prescriptions, failed to register as reverse distributors, and violated CSA recordkeeping requirements.

The claims resolved by the settlements referenced above are allegations only and there has been no determination of liability.

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Contact

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